

ORIGINAL

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 13-cv-02826-WYD-CBS

ELHAM SALEMI,

Plaintiff,

v.

COLORADO PUBLIC EMPLOYEES' RETIREMENT ASSOCIATION,

Defendant.

VERDICT FORM

We, the Jury, being duly impaneled and sworn to try the above-entitled case,
unanimously find the following answers to the questions submitted by the Court:

I. DETERMINATION ON LIABILITY

1. Has Plaintiff proven by a preponderance of the evidence that Defendant
discriminated against her in her pay in violation of the Equal Pay Act based on
Instruction Nos. 15 – 22?

Yes _____ No X

**If you have answered "YES" to Question 1, please proceed to Question 2.
If you have answered "NO," then you have found for Defendant, and you should
sign and date the Verdict Form.**

II. DEFENDANT'S AFFIRMATIVE DEFENSES

2. Has Defendant proven by a preponderance of the evidence that the difference in pay between Plaintiff and the male employee(s) who performed substantially equal work was based on a merit system as defined in Instruction 23(a)?

Yes _____ No _____

3. Has Defendant proven by a preponderance of the evidence that the difference in pay between Plaintiff and the male employee(s) who performed substantially equal work was in fact based on any other factor other than sex?

Yes _____ No _____

If you have answered "YES" to Question 2 OR Question 3 then you have found for Defendant, and you should sign and date the Verdict Form. If you have answered "NO," to Question 2 AND Question 3 then proceed to Questions 4 and 5.

II. DETERMINATION OF DAMAGES

4. Do you find that Defendant's conduct in violation of the Equal Pay Act was "willful," as defined in Instruction No. 24?

Yes _____ No _____

If your answer to Question No. 4 is "YES," then you should calculate damages based on the pay Plaintiff should have received from October 16, 2010 through May 10, 2012 and enter them in the blank next to Question No. 5. If your answer to Question No. 4 is "NO," then you should calculate damages based on the pay Plaintiff should have received from October 16, 2011 through May 10, 2012 and enter them in the blank next to Question No. 5.

5. We find that Plaintiff should be awarded damages in the amount of:

\$_____.

PLEASE SIGN AND DATE THE VERDICT FORM

Date: Feb. 7, 2017

